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Namibia

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.¹ It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. In 2024, the Committee against Torture and the Human Rights Committee stated that Namibia should consider ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment with the aim of establishing a national preventive mechanism.²

3. In 2024, the Committee on the Rights of the Child and, in 2022, the Committee on the Elimination of Discrimination against Women recommended that Namibia ratify the Convention relating to the Status of Stateless Persons of 1954 and the Convention on the Reduction of Statelessness of 1961.³

4. The Committee against Torture encouraged Namibia to consider ratifying the International Convention for the Protection of All Persons from Enforced Disappearance.⁴

5. The International Labour Organization (ILO) noted that Namibia had yet to ratify the Labour Inspection (Agriculture) Convention, 1969 (No. 129).⁵

6. The United Nations country team noted that Namibia had not issued a standing invitation to the special procedures of the Human Rights Council and that requests for visits by mandate holders were pending.⁶



III. National human rights framework

1. Constitutional and legislative framework

7. The Committee against Torture expressed regret that the revised bill on preventing and combating torture had been awaiting parliamentary approval since 2019, and urged Namibia to adopt the bill as soon as possible and to ensure that its provisions defined torture as a specific offence.⁷

8. The Human Rights Committee expressed concern about the delay in adopting bills that sought to address discriminatory aspects of the legislative framework with regard to gender, including the marriage bill, the bill on the recognition of customary marriages, the divorce bill and the uniform matrimonial property bill, and stated that Namibia should expedite the adoption of those bills.⁸

9. In 2024, in information provided in follow-up to the concluding observations by the Committee on the Elimination of Discrimination against Women on its sixth periodic report, Namibia stated that the Dissolution of Marriages Act (Act No. 10 of 2024) and the Marriage Act (Act No. 14 of 2024) had been passed by Parliament but that the regulations operationalizing those Acts had yet to be adopted.⁹

10. Noting that the bill on statelessness determination and protection remained in draft form, the Office of the United Nations High Commissioner for Refugees (UNHCR) stated that the passage of the bill was important as it would provide citizenship to those persons who did not possess the old South West African identity documents and who were therefore not covered by the Regularization of Status of Certain Residents of Namibia, Their Descendants and Foreign Spouses Act (Act No. 15 of 2024).¹⁰

11. Noting that polygamy was regulated by customary law, the Human Rights Committee stated that Namibia should review existing customary marital laws and enact legislation to increase protection for women in polygamous unions, with a view to abolishing polygamy.¹¹

12. Noting reports of numerous incidents of data breaches and cybercrimes, the same Committee stated that Namibia should prioritize the enactment of the data protection bill in line with international standards.¹²

2. Institutional infrastructure and policy measures

13. The Committee on the Rights of the Child recommended that Namibia ensure that the Children's Advocate had sufficient resources to monitor children's rights and to address complaints from children in a child-sensitive manner.¹³

14. The Human Rights Committee expressed concern about the lack of financial and operational autonomy of the Office of the Ombudsman and about the long delay in adopting the Ombudsman bill, and stated that Namibia should expedite the adoption of amendments to the Ombudsman Act (Act No. 7 of 1990).¹⁴

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

15. In their communication of 11 June 2025 to Namibia concerning alleged human rights violations and abuses against workers and community members in the context of the activities of the Tsumeb smelter, special procedure mandate holders noted that, despite the fact that Namibia had gained independence from South Africa in 1990, its apartheid legislation, severe forms of segregation and history of colonialism had left a resounding impact. There were currently vast inequalities between white and black Namibians, with white Namibians still controlling a large share of the economy. Those inequalities were also evident in access to education, work, housing, water and healthcare.¹⁵

16. The Human Rights Committee expressed concern about the prevalence of discrimination and stated that Namibia should: (a) take measures to eliminate all forms of discrimination; (b) address the de facto discrimination faced by Indigenous Peoples, most notably with regard to access to healthcare, education and employment; and (c) address the discrimination in access to healthcare faced by disadvantaged populations, including persons with disabilities and lesbian, gay, bisexual and transgender persons, and ensure that they were provided with healthcare services that met their specific needs.¹⁶

17. The Committee on the Rights of the Child recommended that Namibia review relevant legislation to explicitly prohibit all forms of discrimination, including on the basis of language, political or other opinion, national origin, disability, place of birth, sexual orientation or gender identity.¹⁷

2. Right to life, liberty and security of person, and freedom from torture

18. The Human Rights Committee expressed concern at the reported prevalence of excessive use of force by the Namibian Police Force, including violations of the right to life, and the authorization of the use of potentially lethal force under the Criminal Procedure Act (Act No. 51 of 1977), the Public Gatherings Proclamation (A.G. No. 23 of 1989) and the Correctional Service Act (Act No. 9 of 2012), which was inconsistent with international human rights standards. It stated that Namibia should ensure that: (a) all legislative and regulatory provisions governing the use of force were in line with the Basic Principles on the Use of Force and Firearms by Law Enforcement Officials and the United Nations Human Rights Guidance on Less-Lethal Weapons in Law Enforcement; (b) all reports of excessive use of force by law enforcement officers were promptly, effectively and impartially investigated and alleged perpetrators prosecuted and, if convicted, appropriately sentenced; (c) all law enforcement officers received training on the use of force based on international human rights standards; and (d) the principles of legality, necessity and proportionality were strictly adhered to in practice.¹⁸

19. The Committee against Torture and the Human Rights Committee stated that Namibia should ensure that all complaints of torture and ill-treatment were promptly investigated in an impartial manner by an independent body, and that suspected perpetrators were prosecuted, and if found guilty, punished commensurately with the gravity of the crime.¹⁹

20. The Committee against Torture noted that most pretrial detainees were held in police detention facilities in poor, dilapidated and severely overcrowded holding cells. It stated that Namibia should take the steps necessary to hold them in appropriate places of detention.²⁰

21. The same Committee expressed concern about the lack of strict separation of convicted persons from pretrial detainees in correctional facilities, reported shortages of prison personnel and staff qualified to provide medical and psychological assistance to prisoners, the lack of provision of reasonable accommodation for prisoners with disabilities, the high rate of HIV/AIDS among prisoners and the imposition of solitary confinement as a disciplinary sanction without guaranteeing adequate procedural safeguards. It urged Namibia to improve the material conditions of detention in all correctional facilities, in line with the United Nations Standard Minimum Rules for the Treatment of Prisoners (the Nelson Mandela Rules).²¹

22. The Committee on the Rights of the Child expressed concern about reports of children held in pretrial detention together with adults, and recommended that Namibia ensure that detention was used as a last resort and for the shortest appropriate period of time, and that, in cases where detention was unavoidable, children were not held together with adults.²²

3. Administration of justice, including impunity, and the rule of law

23. The Committee against Torture noted shortcomings in the criminal justice system and stated that Namibia should intensify efforts to reform the criminal justice system, including by increasing judicial capacity and, whenever feasible, making more use of alternatives to pretrial detention and ensuring a more accessible and affordable bail system. The Human Rights Committee stated that Namibia should review bail conditions to ensure that bail was affordable to those entitled to it.²³

24. The Committee against Torture expressed concern about reports of prolonged pretrial detention, which routinely exceeded legal limits. It stated that Namibia should ensure that the provisions governing pretrial detention were respected, and that it was resorted to only in exceptional circumstances and in accordance with the law.²⁴

25. The same Committee stated that Namibia should ensure that all fundamental legal safeguards were guaranteed in law and in practice for all detained persons from the outset of the deprivation of their liberty, including the rights to be informed immediately in a language that they understood of the charges against them, to be brought before a judge within the 48-hour legal limit, to challenge the legality of their detention at any stage of the proceedings, to be assisted by a lawyer of their choice, including during interrogations, and to have access to qualified, independent and free legal aid, if necessary.²⁵

26. The Committee on the Elimination of Discrimination against Women recommended that Namibia increase funding for legal aid and ensure that women had effective access to justice throughout the country.²⁶

4. Fundamental freedoms and the right to participate in public and political life

27. The Human Rights Committee stated that Namibia should consider amending its legislation and practices to ensure that individuals fully enjoyed their right of peaceful assembly and ensure that its legislation allowed the use of potentially lethal force by law enforcement officers only as a last resort and only when necessary to protect life or prevent serious injury from an imminent threat.²⁷

28. The Committee on the Elimination of Discrimination against Women recommended that Namibia take measures to accelerate gender parity at the national and local levels of government, in particular in decision-making positions in the Cabinet, the judiciary, the public service, the foreign service and in sports commissions.²⁸

5. Right to privacy

29. The Committee on the Rights of the Child recommended that Namibia ensure that laws and policies on the digital environment respected children's privacy and protected them from harmful content and online risks.²⁹ The United Nations Educational, Scientific and Cultural Organization (UNESCO) encouraged Namibia to ensure that a mechanism for transparency and accountability was in place for the governance of digital platforms to ensure that human rights were upheld and to mitigate the risks associated with the spread of harmful content online.³⁰

6. Right to marriage and family life

30. The Committee on the Elimination of Discrimination against Women noted reports on the continued practice of depriving a widow of the right to the property that she had shared with her husband, and recommended that Namibia provide legal assistance to women to claim their rights upon dissolution of a marriage or union.³¹

31. The Committee on the Rights of the Child recommended that Namibia promote the equal sharing of parental responsibilities, including by introducing paternity leave and providing incentives for fathers to be actively involved in child-rearing.³²

32. The same Committee urged Namibia to ensure that there were family- and community-based care options for children who could not stay with their families.³³

7. Prohibition of all forms of slavery, including trafficking in persons

33. The United Nations country team stated that the Combating of Trafficking in Persons Act (Act No. 1 of 2018) required amendments to strengthen the protection of victims.³⁴

34. The Committee on the Elimination of Discrimination against Women expressed concern about reports of trafficking in women and girls from, to and in transit through Namibia. It recommended that Namibia: (a) intensify awareness-raising efforts aimed at encouraging reporting of trafficking in women and girls, expedite prosecutions and strengthen cooperation with countries of origin, transit and destination; and (b) continue to

strengthen the national referral mechanism and its standard operating procedures, and provide victims of trafficking with access to shelters and medical, psychosocial and legal assistance.³⁵

35. The Committee on the Rights of the Child expressed concern about the increase in the number of children who were trafficked into Namibia and subsequently placed in domestic or hazardous work, or subjected to commercial sexual exploitation. It recommended that Namibia strengthen measures for the early identification and referral of child victims of trafficking to appropriate services.³⁶

8. Right to work and to just and favourable conditions of work

36. ILO stated that despite relevant provisions in the Labour Act (Act No. 11 of 2007) and the regulations relating to the health and safety of employees at work, Namibia continued to face challenges in effectively implementing policies on occupational safety and health.³⁷

37. The Committee on the Rights of the Child urged Namibia to amend the Labour Act to raise the minimum age of employment to the age of completing compulsory education and the minimum age of employment in hazardous work to 18 years.³⁸

38. The Committee on the Elimination of Discrimination against Women recommended that Namibia: (a) increase professional training for women and girls to reduce unemployment; (b) address segregation in the labour market; (c) increase the availability of affordable childcare facilities; (d) ensure that the principle of equal pay for work of equal value was implemented; (e) take measures to prevent sexual harassment in the workplace; (f) increase the participation of women in the formal economy; and (g) ensure that women employed in the informal economy were covered by maternity and social protection.³⁹

9. Right to social security

39. The Committee on the Rights of the Child urged Namibia to increase budget allocations for social protection programmes affecting children and strengthen their effectiveness.⁴⁰

40. The same Committee recommended that Namibia strengthen support for parents of children with disabilities by increasing financial support, providing training and introducing flexible working arrangements, and ensure that they knew how to seek the necessary support.⁴¹

10. Right to an adequate standard of living

41. Noting the high incidence of poverty in Namibia, the Committee on the Elimination of Discrimination against Women recommended that Namibia take concrete measures to address poverty and ensure gender mainstreaming in its development plans.⁴²

42. The Committee on the Rights of the Child urged Namibia to strengthen measures to end child poverty and ensure the right of all children to an adequate standard of living, and to ensure that measures to combat poverty complied with a child rights-based approach and addressed the root causes of multidimensional child poverty.⁴³

11. Right to health

43. Noting that significant progress had been made in ensuring the right to health, the United Nations country team stated that the delivery of equitable access to health services continued to be a challenge. There was also high dependence on external funding, especially for services relating to HIV, tuberculosis and malaria.⁴⁴

44. The Committee on the Elimination of Discrimination against Women recommended that Namibia: (a) amend section 3 (1) of the Abortion and Sterilization Act (Act No. 2 of 1975) to decriminalize abortion in all cases; (b) improve women's access to safe abortion and post-abortion services; (c) increase access to quality family planning services and modern contraceptives for women of reproductive age; (d) ensure safe and appropriate access to sexual and reproductive health services free from discrimination; (e) address the high prevalence of HIV/AIDS among women, implement the road map for the elimination of mother-to-child transmission of HIV and ensure access to free antiretroviral treatment; and

(f) conduct a study on forced sterilizations of HIV-positive women, and ensure that no sterilizations were performed without the free, prior and informed consent of the woman concerned.⁴⁵

45. The Committee on the Rights of the Child recommended that Namibia strengthen measures to ensure that all children had access to quality health services and strengthen efforts to reduce infant mortality rates and to eliminate malnutrition, stunting and micronutrient deficiency among children.⁴⁶

46. The same Committee urged Namibia to ensure that all adolescents had access to age-appropriate family planning services and free contraceptives, and that sexual and reproductive health education included education on sexual and reproductive health rights, sexual diversity, responsible sexual behaviour and prevention of early pregnancy and sexually transmitted infections.⁴⁷

47. The Committee against Torture urged Namibia to accelerate the process of reforming its mental health legislation to bring it into compliance with international human rights standards.⁴⁸

12. Right to education

48. UNESCO and the United Nations country team noted the announcement by the President of Namibia that the Government would fully subsidize tuition and registration fees at all State-run universities and vocational training centres from 2026.⁴⁹

49. UNESCO referred to relevant recommendations from the previous review that had been supported by Namibia.⁵⁰ It stated that while the Basic Education Act (Act No. 3 of 2020) codified universal primary education and universal secondary education, there remained a persistent shortage of classrooms and basic facilities that hindered access to quality education, especially in rural areas. There was also limited access to inclusive education for learners with disabilities due to inadequate infrastructure, insufficient assistive devices and a shortage of specialized teachers.⁵¹

50. The Committee on the Rights of the Child expressed concern about the poor quality of education, and urged Namibia to ensure that reforms to improve the quality of education included measures to, inter alia, integrate life skills training and modern teaching methods into school curricula, strengthen the training of teachers and education professionals, and improve educational outcomes for all children.⁵²

51. The same Committee recommended that Namibia ensure that all children with disabilities had access to inclusive education in mainstream schools and expand the provision of quality multilingual education, particularly for children belonging to Indigenous or ethnic minority groups.⁵³

52. The Committee on the Elimination of Discrimination against Women recommended that Namibia: (a) ensure that all girls and boys had access to age-appropriate, evidence-based and scientifically accurate education on sexual and reproductive health and rights;⁵⁴ (b) provide adequate sanitation facilities and free sanitary pads for girls in schools, including through the dignity project, and include age-appropriate training on menstrual management in school curricula;⁵⁵ (c) strengthen the implementation of programmes in place to reduce school dropout rates due to early pregnancy and to promote the re-entry into school of mothers after giving birth;⁵⁶ (d) promote the participation of women and girls in non-traditional fields of study and career paths, in particular in science, technology, engineering, mathematics and information and communications technology;⁵⁷ and (e) fully implement the sector policy on inclusive education (2013), and ensure support to girls with disabilities in schools and the accessibility of school buildings.⁵⁸

13. Cultural rights

53. Noting that Namibia was a State Party to the Convention for the Protection of the World Cultural and Natural Heritage, the Convention for the Safeguarding of the Intangible Cultural Heritage and the Convention on the Protection and Promotion of the Diversity of Cultural Expressions, UNESCO encouraged Namibia to fully implement the relevant

provisions of those Conventions that promoted access to and participation in cultural heritage and creative expression.⁵⁹

14. Development, the environment, and business and human rights

54. The Committee on the Elimination of Discrimination against Women urged Namibia to recognize women as the driving force of its sustainable development and to adopt relevant policies and strategies to that effect. The Committee on the Rights of the Child urged Namibia to ensure the meaningful participation of children in the design and implementation of policies and programmes aimed at achieving all 17 Sustainable Development Goals insofar as they concerned children.⁶⁰

55. The United Nations country team stated that climate change disproportionately affected marginalized groups and that, although Namibia had demonstrated its commitment to climate action through various initiatives, the application of a human right-based approach in addressing climate change was still limited.⁶¹

56. The Committee on the Elimination of Discrimination against Women recommended that Namibia conduct environmental and human rights impact assessments in relation to oil and gas exploration activities in the country, and ensure that any decisions on oil and gas exploitation in the Kavango region were subject to the full, prior and informed consent of local communities.⁶²

57. In their communication of 11 June 2025 to Namibia, special procedure mandate holders noted that, based on information received: (a) the Tsumeb smelter, in Tsumeb, which produced blister copper, had caused the release of smelting by-products into the environment, which had contaminated the air, soil and water, creating a danger to human health and the environment; (b) the Government, among others, had repeatedly attempted to delegitimize research on water, environment and community health in Tsumeb, and had barred researchers from publishing their findings in scientific journals; and (c) the “grandfather clause”, a legal provision that shielded smelter owners from liability for the environmental and human rights harm that they had caused, was of great concern and was not in alignment with international standards.⁶³

B. Rights of specific persons or groups

1. Women

58. The Human Rights Committee stated that Namibia should take appropriate steps to tackle the root causes of gender-based violence, such as inequality, poverty, social exclusion and drug and alcohol abuse, including through engagement programmes and training for men.⁶⁴

59. The Committee on the Elimination of Discrimination against Women recommended that Namibia initiate in-depth participatory research on the communities and contexts in which harmful practices, including polygamy, violent sexual initiation, grooming and cleansing, persisted, continue to engage traditional leaders and communities in addressing gender stereotypes and harmful practices through awareness-raising programmes and develop a national strategy on the prevention of harmful practices.⁶⁵

60. The same Committee noted with concern reports on the high prevalence of intimate partner violence and other forms of gender-based violence against women, and the limited access for women to protection orders, reparations, shelters and psychological treatment and counselling. Similar concerns were also expressed by the Committee against Torture and the Human Rights Committee.⁶⁶

61. The Human Rights Committee expressed concern about the low number of prosecutions and convictions handed down to perpetrators of gender-based violence. It stated that Namibia should remove all barriers to prosecuting and punishing perpetrators of domestic violence and implement the Combating of Domestic Violence Act (Act No. 4 of 2003), including by increasing the availability of specialized courts and ensuring that the

gender-based violence protection units run by the Namibian Police Force were provided with appropriate resources.⁶⁷

62. The Committee on the Elimination of Discrimination against Women recommended that Namibia ensure effective access to protection orders, reparations, shelters and psychosocial treatment and counselling for women and girls who were victims of gender-based violence.⁶⁸

63. In information provided in follow-up to the concluding observations by the Committee on the Elimination of Discrimination against Women on its sixth periodic report, Namibia stated that capacity-building for the judiciary, healthcare workers and civil society organizations had been conducted on preventing and responding to cases of gender-based violence.⁶⁹

64. The Committee on the Elimination of Discrimination against Women recommended that Namibia: (a) ensure women's equal access to bank loans, mortgages and other forms of financial credit; (b) increase women's access to entrepreneurship grants, training and support; (c) increase women's access to land and their representation in related decision-making processes; and (d) ensure rural women's access to social protection and basic services, such as healthcare, food, housing, electricity, mobile money-transfer systems, transportation, water and sanitation.⁷⁰

2. Children

65. The Committee on the Rights of the Child recommended that Namibia: (a) ensure that the principle of the best interests of the child was consistently interpreted and applied in all legislation, policies and programmes affecting children, and by public or private social welfare institutions, courts of law, administrative authorities and legislative bodies, in accordance with section 3 (1) of the Child Care and Protection Act (Act No. 3 of 2015);⁷¹ (b) ensure the effective implementation of the Child Care and Protection Act and develop mandatory child-rights impact assessment procedures for all legislation and policies relevant to children;⁷² (c) address the root causes of child abandonment and ensure the right of all children to life, survival and development;⁷³ (d) consider adopting a regulatory framework for protecting the rights of children born through surrogacy;⁷⁴ (e) promote the meaningful and empowered participation of all children within the family, communities and schools, in all relevant judicial and administrative proceedings, and include children in decision-making in all matters related to them.⁷⁵

66. The Committee against Torture expressed concern that the harmful traditional practice of child marriage under customary law persisted in some communities, despite its prohibition in section 226 of the Child Care and Protection Act, and stated that Namibia should enforce that legislation and address the harmful consequences of the practice. The Committee on the Elimination of Discrimination against Women and the Human Rights Committee stated that Namibia should address the root causes of child marriage.⁷⁶

67. The Committee on the Rights of the Child expressed concern about the growing number of children in street situations, and recommended that Namibia ensure that they had access to food, education, healthcare and housing, and establish mechanisms to prevent them from falling victim to trafficking and economic and sexual exploitation.⁷⁷

3. Persons with disabilities

68. The same Committee recommended that Namibia continue its efforts to fully adopt a human rights-based approach to disability, including by aligning relevant policies with international standards.⁷⁸

69. The Committee on the Elimination of Discrimination against Women recommended that Namibia amend the Labour Act and the Affirmative Action (Employment) Act (Act No. 29 of 1998) to include a rights-based model of disability and promote access to employment opportunities and leadership positions by women with disabilities.⁷⁹

70. The United Nations country team stated that access for persons with disabilities to services remained limited, with many buildings, transport systems and essential facilities lacking ramps, tactile signage or auditory cues.⁸⁰

4. Indigenous Peoples and minorities

71. The Human Rights Committee expressed concern that Namibia did not recognize certain communities as Indigenous Peoples, instead referring to them as marginalized communities. It stated that Namibia should consider recognizing communities such as the San, Himba, Ovatie, Ovatjimba and Ovazemba as Indigenous Peoples with the concomitant rights recognized in international standards.⁸¹

72. The same Committee stated that Namibia should ensure that Indigenous Peoples benefited fully from the National Resettlement Policy and that land allocation criteria took account of ancestral land ties. It should also take appropriate measures with a view to promoting the restitution of ancestral lands to affected communities, including Indigenous Peoples.⁸²

73. The same Committee expressed concern about the very low level of participation by Indigenous Peoples in political life and public administration, and stated that Namibia should take the measures necessary to increase the representation of all Indigenous Peoples in governance structures and public administration.⁸³

74. In their communication of 12 September 2024 to Namibia, special procedure mandate holders noted that, based on information received, the planned extension of the harbour in Lüderitz, would endanger an important heritage site that memorialized the 1904–1908 genocide. The decision to expand the harbour in Lüderitz did not seem to have given sufficient attention to the requests from the Nama and Ovaherero peoples concerned, in violation of their cultural rights, their right to recognition and their right to know the truth about the gross human rights violations against them and to fully take part in decision-making processes that affected their land, culture and memory of those violations. International law required States to obtain the free, prior and informed consent of the Indigenous Peoples concerned through their own representatives before adopting and implementing measures that might affect them.⁸⁴

75. In their communication of 23 February 2023, special procedure mandate holders brought to the attention of Namibia information that they had received concerning the lack of meaningful participation of the Ovaherero and Nama peoples in the negotiations leading to the issuance of the “Joint Declaration by the Federal Republic of Germany and the Republic of Namibia: United in remembrance of our colonial past, united in our will to reconcile, united in our vision of the future”, as well as the lack of effective reparative measures afforded to them, including an unqualified recognition of the genocide committed against those communities between 1904 and 1908. They expressed grave concern at the alleged failure to ensure the right of the Ovaherero and Nama peoples to meaningful participation, through self-elected representatives, in the discussions on the recognition and redress of the 1904–1908 genocide. They recalled that the legal status of the Ovaherero and Nama peoples and their representatives as Indigenous Peoples under international and national law was different and separate from that of the Namibian Government itself, and thus they required a place of their own in the negotiations.⁸⁵

76. In its response of 30 May 2023, Namibia stated that the affected communities had been invited to nominate representatives to serve on the technical committee tasked with negotiations. The Ovaherero and Ovambanderu Traditional Leaders and the Nama Traditional Authorities Association had rejected the invitation. Namibia indicated that the Government would continue to extend a hand of collaboration to those groups.⁸⁶

5. Lesbian, gay, bisexual, transgender and intersex persons

77. The Human Rights Committee stated that Namibia should amend the Labour Act, the Combating of Domestic Violence Act and the Combating of Rape Act (Act No. 8 of 2000) to extend the protection provided under those Acts to lesbian, gay, bisexual and transgender persons.⁸⁷

78. The Committee against Torture expressed concern about the criminalization of consensual sexual relations between persons of the same sex, and recommended that Namibia decriminalize consensual same-sex relations. It also expressed concern about the reported persistent violence, including harassment, hate speech and hate crimes, against individuals

on the basis of their actual or perceived sexual orientation or gender identity, and stated that Namibia should take effective measures to prevent such violence and ensure that all acts of violence were investigated and prosecuted promptly.⁸⁸

6. Migrants, refugees and asylum-seekers

79. The same Committee stated that Namibia should repeal section 24 (1) of the Namibia Refugees (Recognition and Control) Act (Act No. 2 of 1999) with a view to guaranteeing the absolute principle of non-refoulement.⁸⁹

80. UNHCR and the United Nations country team noted that Namibia maintained its reservation to article 26 of the Convention relating to the Status of Refugees of 1951, thus limiting the freedom of movement of refugees and preventing their participation in meaningful livelihood opportunities.⁹⁰

81. The Human Rights Committee stated that Namibia should regularly review conditions in the Osire settlement and ensure an adequate standard of living for those settled there.⁹¹

82. UNHCR stated although the Namibia Refugees (Recognition and Control) Act prescribed a 30-day time limit for the adjudication of asylum applications, there were significant delays in receiving decisions from the authorities.⁹²

7. Stateless persons

83. UNHCR stated that although the Civil Registration and Identification Act (Act No. 13 of 2024) and the Regularization of Status of Certain Residents of Namibia, Their Descendants and Foreign Spouses Act had yet to come into force, they nonetheless represented a significant step forward in ensuring the fundamental right to identity and addressing long-standing issues of statelessness within the country.⁹³

84. The Committee on the Rights of the Child recommended that Namibia: (a) ensure that safeguards were in place for the protection of stateless children, in line with its Harambee Prosperity Plan and the pledge made at the Global Refugee Forum to prevent and reduce statelessness;⁹⁴ and (b) strengthen its efforts to achieve universal birth registration and ensure that all children had access to birth registration and identity documents.⁹⁵

Notes

¹ [A/HRC/48/4](#), [A/HRC/48/4/Add.1](#) and [A/HRC/48/2](#).

² [CAT/C/NAM/CO/3](#), para. 15 (b); and [CCPR/C/NAM/CO/3](#), para. 19 (f).

³ [CRC/C/NAM/CO/4-6](#), para. 20 (e); and [CEDAW/C/NAM/CO/6](#), para. 36 (b). See also Office of the United Nations High Commissioner for Refugees (UNHCR) submission for the universal periodic review of Namibia, pp. 1 and 6.

⁴ [CAT/C/NAM/CO/3](#), para. 25.

⁵ ILO submission for the universal periodic review of Namibia, p. 1.

⁶ United Nations country team submission for the universal periodic review of Namibia, p. 2.

⁷ [CAT/C/NAM/CO/3](#), paras. 8 and 9. See also [CCPR/C/NAM/CO/3](#), paras. 18 and 19 (a); and United Nations country team submission, p. 7.

⁸ [CCPR/C/NAM/CO/3](#), paras. 10 and 11 (a). See also [CEDAW/C/NAM/CO/6](#), para. 16 (a).

⁹ [CEDAW/C/NAM/FCO/6](#), para. 4.

¹⁰ UNHCR submission, pp. 5 and 6.

¹¹ [CCPR/C/NAM/CO/3](#), paras. 10 and 11 (b).

¹² *Ibid.*, paras. 30 and 31. See also [CRC/C/NAM/CO/4-6](#), para. 22 (c).

¹³ [CRC/C/NAM/CO/4-6](#), para. 12 (a).

¹⁴ [CCPR/C/NAM/CO/3](#), paras. 4 and 5. See also [CAT/C/NAM/CO/3](#), paras. 14 and 15; and [CEDAW/C/NAM/CO/6](#), paras. 21 and 22.

¹⁵ See communication NAM 1/2025, p. 7, available from <https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=29917>. See also United Nations country team submission, p. 9.

¹⁶ [CCPR/C/NAM/CO/3](#), paras. 8 and 9 (a) and (b).

¹⁷ [CRC/C/NAM/CO/4-6](#), para. 16 (a).

¹⁸ [CCPR/C/NAM/CO/3](#), paras. 16 and 17 (a), (c) and (e). See also United Nations country team submission, p. 7.

- ¹⁹ CAT/C/NAM/CO/3, para. 23 (a); and CCPR/C/NAM/CO/3, para. 19 (d).
- ²⁰ CAT/C/NAM/CO/3, paras. 12 and 13 (b). See also CCPR/C/NAM/CO/3, para. 24.
- ²¹ CAT/C/NAM/CO/3, paras. 16 and 17 (a). See also CAT/C/NAM/CO/2, paras. 16 and 17.
- ²² CRC/C/NAM/CO/4-6, para. 46 (d).
- ²³ CAT/C/NAM/CO/3, paras. 12 and 13 (c); and CCPR/C/NAM/CO/3, para. 23 (c). See also United Nations country team submission, p. 6.
- ²⁴ CAT/C/NAM/CO/3, paras. 12 and 13 (a).
- ²⁵ Ibid., para. 11.
- ²⁶ CEDAW/C/NAM/CO/6, para. 18 (b) and (c). See also CCPR/C/NAM/CO/3, para. 29.
- ²⁷ CCPR/C/NAM/CO/3, para. 35.
- ²⁸ CEDAW/C/NAM/CO/6, para. 32 (a).
- ²⁹ CRC/C/NAM/CO/4-6, para. 22 (c).
- ³⁰ UNESCO submission for the universal periodic review of Namibia, para. 37.
- ³¹ CEDAW/C/NAM/CO/6, paras. 53 (d) and 54 (d).
- ³² CRC/C/NAM/CO/4-6, para. 27 (a).
- ³³ Ibid., para. 29 (a).
- ³⁴ United Nations country team submission, p. 7.
- ³⁵ CEDAW/C/NAM/CO/6, paras. 29 (a) and 30 (b) and (c).
- ³⁶ CRC/C/NAM/CO/4-6, para. 45.
- ³⁷ ILO submission, p. 1.
- ³⁸ CRC/C/NAM/CO/4-6, para. 43 (a). See also CRC/C/NAM/CO/2-3, para. 68.
- ³⁹ CEDAW/C/NAM/CO/6, para. 40 (a)–(e).
- ⁴⁰ CRC/C/NAM/CO/4-6, para. 36 (b).
- ⁴¹ Ibid., para. 30 (c).
- ⁴² CEDAW/C/NAM/CO/6, paras. 43 (a) and 44 (a). See also United Nations country team submission, p. 9.
- ⁴³ CRC/C/NAM/CO/4-6, para. 36 (a) and (d). See also United Nations country team submission, p. 5.
- ⁴⁴ United Nations country team submission, p. 10.
- ⁴⁵ CEDAW/C/NAM/CO/6, para. 42 (a) and (c)–(g). See also CCPR/C/NAM/CO/3, para. 15.
- ⁴⁶ CRC/C/NAM/CO/4-6, para. 31 (a)–(c).
- ⁴⁷ Ibid., para. 34 (b) and (d).
- ⁴⁸ CAT/C/NAM/CO/3, para. 39. See also CRC/C/NAM/CO/4-6, para. 32.
- ⁴⁹ UNESCO submission, para. 16; and United Nations country team submission, p. 11.
- ⁵⁰ UNESCO submission, para. 10. For the relevant recommendations, see A/HRC/48/4, para. 138.55 (Togo) and para. 138.277 (Fiji). See also A/HRC/48/4/Add.1, para. 3.
- ⁵¹ UNESCO submission, para. 11. See also *ibid.*, para. 34; and United Nations country team submission, p. 11.
- ⁵² CRC/C/NAM/CO/4-6, paras. 38 and 39 (a).
- ⁵³ Ibid., para. 40 (a) and (b).
- ⁵⁴ CEDAW/C/NAM/CO/6, para. 38 (a).
- ⁵⁵ Ibid., para. 38 (e).
- ⁵⁶ Ibid., para. 38 (b). See also UNESCO submission, para. 17.
- ⁵⁷ CEDAW/C/NAM/CO/6, para. 38 (d).
- ⁵⁸ Ibid., para. 48 (a).
- ⁵⁹ UNESCO submission, para. 38.
- ⁶⁰ CEDAW/C/NAM/CO/6, para. 7; and CRC/C/NAM/CO/4-6, para. 5.
- ⁶¹ United Nations country team submission, pp. 11 and 12.
- ⁶² CEDAW/C/NAM/CO/6, para. 52.
- ⁶³ See communication NAM 1/2025, pp. 1, 2, 8 and 9.
- ⁶⁴ CCPR/C/NAM/CO/3, para. 13 (e).
- ⁶⁵ CEDAW/C/NAM/CO/6, para. 26 (b).
- ⁶⁶ Ibid., para. 27 (b) and (d); CAT/C/NAM/CO/3, para. 28; and CCPR/C/NAM/CO/3, para. 12. See also United Nations country team submission, p. 4.
- ⁶⁷ CCPR/C/NAM/CO/3, paras. 12 and 13 (a). See also CAT/C/NAM/CO/3, para. 29.
- ⁶⁸ CEDAW/C/NAM/CO/6, para. 28 (d).
- ⁶⁹ CEDAW/C/NAM/FCO/6, para. 7.
- ⁷⁰ CEDAW/C/NAM/CO/6, paras. 44 (b) and (c) and 46. See also United Nations country team submission, p. 3.
- ⁷¹ CRC/C/NAM/CO/4-6, para. 17 (a).
- ⁷² Ibid., para. 6 (a) and (c).
- ⁷³ Ibid., para. 18. See also *ibid.*, para. 21 (a).
- ⁷⁴ Ibid., para. 21 (b).
- ⁷⁵ Ibid., para. 19 (a).

- ⁷⁶ CAT/C/NAM/CO/3, paras. 30 and 31; CEDAW/C/NAM/CO/6, para. 26 (a); and CCPR/C/NAM/CO/3, para. 37 (c). See also CEDAW/C/NAM/FCO/6, para. 8; and CRC/C/NAM/CO/4-6, para. 26.
- ⁷⁷ CRC/C/NAM/CO/4-6, para. 44 (b).
- ⁷⁸ Ibid., para. 30 (a).
- ⁷⁹ CEDAW/C/NAM/CO/6, para. 48 (b).
- ⁸⁰ United Nations country team submission, pp. 5 and 6.
- ⁸¹ CCPR/C/NAM/CO/3, paras. 40 and 41.
- ⁸² Ibid., para. 43.
- ⁸³ Ibid., paras. 38 and 39.
- ⁸⁴ See communication NAM 1/2024, pp. 1 and 4, available from <https://spcommreports.ohchr.org/TMResultsBase/DownloadPublicCommunicationFile?gId=29269>.
- ⁸⁵ See communication NAM 1/2023, pp. 1 and 8, available from <https://spcommreports.ohchr.org/TMResultsBase/DownloadPublicCommunicationFile?gId=27878>.
- ⁸⁶ See <https://spcommreports.ohchr.org/TMResultsBase/DownloadFile?gId=37541>.
- ⁸⁷ CCPR/C/NAM/CO/3, para. 9 (d).
- ⁸⁸ CAT/C/NAM/CO/3, paras. 32 and 33.
- ⁸⁹ Ibid., para. 27 (a).
- ⁹⁰ UNHCR submission, pp. 2 and 3; and United Nations country team submission, p. 6.
- ⁹¹ CCPR/C/NAM/CO/3, para. 27.
- ⁹² UNHCR submission, p. 4.
- ⁹³ Ibid., pp. 2 and 6.
- ⁹⁴ CRC/C/NAM/CO/4-6, para. 20 (c).
- ⁹⁵ Ibid., para. 20 (a). See also CCPR/C/NAM/CO/3, para. 37 (a).
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